

Department of Homeland Security Appropriations: FY2027 State of Play

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Introduction

FY2027 marks the 24th annual appropriations cycle with a Department of Homeland Security (DHS) appropriations measure.

This report is a quick reference for tracking the status of FY2027 DHS appropriations.

For more in-depth analyses of the FY2027 DHS appropriations request and the congressional responses, see

- CRS Report R48979, *DHS Budget Request Analysis: FY2027*, by William L. Painter, and
- CRS Report R49342, *Department of Homeland Security Appropriations: FY2027 Provisions*, by William L. Painter.

Summary: FY2027 DHS Appropriations Status

As of the date of publication:

Annual appropriations for DHS for FY2027 have not yet been enacted. A brief summary of the FY2027 process follows:

- On April 3, 2026, President Donald J. Trump's Administration released its budget request for FY2027, which included \$118.39 billion in total budget authority for DHS.
- The release of this budget request occurred before the resolution of the FY2026 annual appropriations process, which happened in two stages: (1) The enactment on April 30, 2026, of P.L. 119-86, which provided FY2026 appropriations for all of DHS except U.S. Immigration and Customs Enforcement (ICE) and the U.S. Border Patrol (USBP, a subcomponent of U.S. Customs and Border Protection [CBP]); and (2) the enactment on June 10, 2026, of P.L. 119-98, the FY2026 reconciliation law, which provided multi-year funding for ICE and all of CBP.¹
- The House Appropriations Committee reported H.R. 9310, the Department of Homeland Security Appropriations Act, 2027, on June 12, 2026, by a vote of 34-27.
- The Senate Appropriations Committee has not yet marked up a version of the Department of Homeland Security Appropriations Act, 2027.
- President Trump signed an interim continuing resolution into law on September 2, 2026.² This continuing resolution is scheduled to expire on December 11, 2026, unless extended or superseded by other legislation.

For FY2027, multi-year funding is available to several elements of DHS from reconciliation laws for FY2025 (P.L. 119-21) and FY2026 (P.L. 119-98).

¹ For more information on the FY2026 lapses in DHS appropriations, see CRS Report R49105, *Lapses in DHS Appropriations: History and Plans*, by William L. Painter.

² Continuing Appropriations and Extensions Act, 2027 (P.L. 119-103).

- General information on this funding is included in CRS Report R48874, *Department of Homeland Security Appropriations: FY2026 State of Play*, by William L. Painter.

DHS Appropriations Timing

Figure 1 shows a history of the timing of the annual Department of Homeland Security Appropriations Act, since its first development in 2003 (for FY2004). Tracked actions include

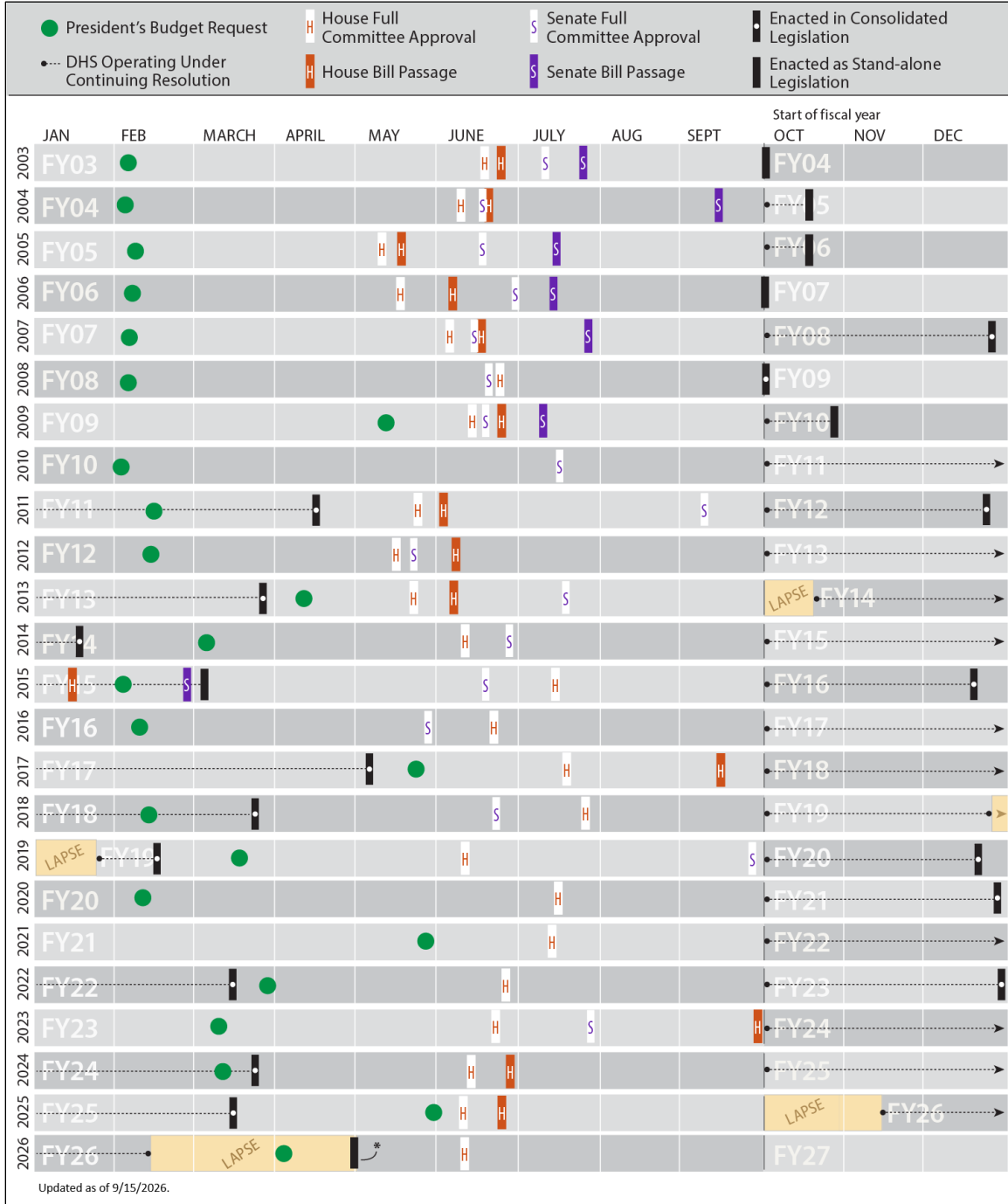
- the release of the budget request (green dot);
- full committee markups and passage of the House and Senate versions of the bill (orange and purple bars, respectively); and
- enactment of the measure (black bar).

Dotted lines show the months covered by CRs. Beige segments indicate lapses in annual appropriations.

In six of the first seven years of its existence, the annual appropriations measure for DHS was enacted within a month of the beginning of the fiscal year it covered. Since FY2010, no annual DHS appropriations measure has been enacted before two months of the fiscal year it covered had passed, and in 14 of those 17 years, three months had passed before DHS annual appropriations were enacted.

The lapse in DHS appropriations that began in February 2026 was the longest such lapse in the history of the department. The resolution of that lapse continues to have an effect on FY2027 DHS appropriations: The Administration's request for FY2027 was not, and could not have been due to its timing, fully reflective of the resources the agency would ultimately have on hand for FY2026 or FY2027 through the yet-to-be-enacted appropriations act and FY2026 reconciliation law. Also, the partial funding of the department through the Department of Homeland Security Appropriations Act, 2026, as well as the provision of operating funds for CBP and ICE in a reconciliation measure that did not go through the appropriations committee were departures from precedent. It remains to be seen how a finalized DHS appropriations measure for FY2027 may take into account the existing availability of reconciliation-provided FY2027 operating funds for CBP and ICE.

Figure I. DHS Appropriations Process Timing, FY2004-FY2027
(as of September 15, 2026)



Source: CRS analysis of Administration budget request release dates and legislative action from Congress.gov.

Notes: * The FY2026 DHS appropriations act resolved the lapse in appropriations for most of DHS, with the exception of the U.S. Border Patrol and U.S. Immigration and Customs Enforcement. Final action on annual appropriations for FY2011, FY2013-FY2015, FY2017-FY2019, FY2022, and FY2024-FY2026 occurred after the beginning of the new calendar year. The FY2019 lapse began in December 2018. Two short lapses in January of FY2018 and a two-day lapse from January 31 to February 2, 2026, are not displayed due to limitations of scale.

The FY2027 DHS Appropriations Process

President's Budget Request

On April 3, 2026, President Trump's Administration released its budget request for FY2027, which included \$118.39 billion in total budget authority for DHS (\$99.39 billion of which was gross discretionary budget authority, including \$28.38 billion for the costs of major disasters).³

At the time of the release of the budget request, the FY2026 annual appropriation for DHS had yet to be completed. FY2026 DHS appropriations were resolved in two laws:

1. The Department of Homeland Security Appropriations Act, 2026 (P.L. 119-86, Division A), which was enacted on April 30, 2026, funding all of DHS except for the U.S. Border Patrol (USBP) and U.S. Immigration and Customs Enforcement (ICE); and
2. The FY2026 reconciliation law (P.L. 119-98, with a short title of "Secure America Act"), which was enacted on June 10, 2026, and provided FY2026 funding for U.S. Customs and Border Protection (CBP, which includes USBP), ICE, and the Office of the Secretary. Funding under P.L. 119-98 will be available through FY2029.

The request, therefore, did not take into account the availability of the additional multi-year funding for CBP and ICE, or the funding levels and direction from the FY2026 DHS appropriations act.

House Action

On June 10, 2026, the House Committee on Appropriations (HAC) marked up H.R. 9310, its version of the Department of Homeland Security Appropriations Act, 2027. H.Rept. 119-697 was filed on June 12, 2026, providing additional direction to DHS, and minority party views. HAC-reported H.R. 9310 included \$99.63 billion in discretionary budget authority, including \$28.39 billion designated for the costs of major disasters. This was roughly \$0.23 billion above the level requested by the Administration and \$9.68 billion above the FY2026 enacted amount (leaving aside the reconciliation funding and disaster relief funding). When considering the difference between the FY2026 DHS appropriations act and HAC-reported H.R. 9310, the HAC-reported bill included at least \$17.06 billion in funding for ICE and the USBP for activities funded in the FY2026 reconciliation law rather than the FY2026 DHS appropriations act.

Senate Committee Action

The Senate Committee on Appropriations (SAC) has not yet marked up a version of the FY2027 Department of Homeland Security Appropriations Act.

Continuing Resolution

On July 18, 2026, HAC Chairman Tom Cole introduced H.R. 9770, an interim continuing resolution (CR) funding the entirety of the federal government (including DHS) through

³ U.S. Department of Homeland Security, *Congressional Justification: Department of Homeland Security Overview*, Washington, DC, April 3, 2026, https://www.dhs.gov/sites/default/files/2026-04/26_0403_ocfo_fy27-budget-dhs-overview.pdf.

December 4, 2026, at a rate for operations based on the FY2026 appropriations measures. It was considered under a closed rule on July 21, 2026, and passed by a vote of 220-205.⁴

The House had drafted its measure before the Administration had provided Congress with the traditional list of “anomalies” for the CR—alterations and program extensions that it believed warranted inclusion in the measure to avoid unintended complications.

The Senate amended an unrelated measure, H.R. 6500, with the text of an interim CR as Division A, funding the government through December 11, 2026, at a rate for operations based on the FY2026 appropriations measures. The amended bill included a number of anomalies and authorization extensions, some of which had been requested by the Administration.⁵ The Senate passed the amended measure on August 8, 2026, by a vote of 90-6.⁶ The House took up the Senate-passed bill on September 1, 2026, and agreed to it under suspension of the rules by a vote of 370-48.⁷

President Trump signed H.R. 6500 into law as P.L. 119-103 on September 2, 2026.⁸

DHS-Related Provisions of P.L. 119-103, Division A

Section 101(6) establishes P.L. 119-86 as the baseline for continuing appropriations for DHS for FY2027. However, Section 101(6) specifically excludes Division B of the act, which had included a series of provisions required for the resolution of P.L. 119-37’s continuing appropriations for DHS in FY2026, as well as their lapse.⁹ Section 101(6) also includes Sections 5013 through 5016 of Division I of P.L. 119-75 as a part of the CR’s baseline. These four sections extend various immigration-related programs for the duration of the CR.

- **Section 5013:** Waiver of foreign residence requirement for foreign medical graduates on J-1 visas working in underserved areas in the U.S. (also known as the Conrad State Program);¹⁰
- **Section 5014:** E-Verify employment eligibility program extension;¹¹
- **Section 5015:** Non-minister religious workers special immigrant status program;¹²
- **Section 5016:** H-2B supplemental visa authorization.¹³

⁴ House Roll Call Vote 272, available at <https://www.congress.gov/votes/house/119-2/272>.

⁵ For details on the content of P.L. 119-103, Division A, see CRS Report R49353, *Overview of Continuing Appropriations for FY2027 (Division A of P.L. 119-103)*, coordinated by Drew C. Aherne.

⁶ Senate Roll Call Vote Number 228, available at https://www.senate.gov/legislative/LIS/roll_call_votes/vote1192/vote_119_2_00228.htm.

⁷ House Roll Call Vote 286, available at <https://www.congress.gov/votes/house/119-2/286>.

⁸ Continuing Appropriations and Extensions Act, 2027 (P.L. 119-103).

⁹ This differs from the House-passed FY2027 CR (H.R. 9770), which referenced only Division A of P.L. 119-86. By referencing the whole act and excepting Division B instead, the enacted CR retains in its coverage the front matter of P.L. 119-86, which included direction related to the explanatory statement accompanying the act.

¹⁰ For more information on this provision, see the “Exchange Visitors (J Visas)” section of CRS Report R49032, *Immigration Legislation and Issues in the 119th Congress*, coordinated by Jill H. Wilson and Holly Straut.

¹¹ For more information on this provision, see the “Employment Eligibility Verification” section of CRS Report R49032, *Immigration Legislation and Issues in the 119th Congress*, coordinated by Jill H. Wilson and Holly Straut.

¹² For more information on this provision, see CRS Report R48829, *Religious Worker Immigration: In Brief*, by William A. Kandel and Jill H. Wilson.

¹³ For more information on these provisions, see the “Nonagricultural Workers (H-2B Visas)” section of CRS Report R49032, *Immigration Legislation and Issues in the 119th Congress*, coordinated by Jill H. Wilson and Holly Straut.

Congress has frequently included these extensions in appropriations legislation.¹⁴

As noted above, P.L. 119-86 did not include funding for ICE or USBP. Those elements of DHS continue to operate under funding provided in P.L. 119-98.

Section 137—Disaster Relief Fund

Section 137 provides that amounts made available by the CR for the Disaster Relief Fund (DRF) may be apportioned at a rate for operations necessary to carry out response and recovery activities under the Robert T. Stafford Act Disaster Relief and Emergency Assistance Act (P.L. 100-707). This anomaly ensures that up to \$26.37 billion is available for the duration of the CR to support the federal government's disaster response and recovery activities associated with disasters in the event the DRF's existing carryover balances are obligated. Section 137 is not a supplemental appropriation—all obligations made with this budget authority will count against whatever annual appropriation may be provided for the DRF for FY2027. This anomaly was included in the request reportedly submitted by the Administration, and similar anomalies have been enacted in CRs for each fiscal year since FY2018.

Section 138—Extension of Transportation Security Administration (TSA) Reimbursable Screening Services

Section 138 extends the authorization for TSA's reimbursable screening services pilot program for the duration of the CR. The program allows TSA and TSA-regulated entities to enter into agreements for TSA to be reimbursed for providing passenger screening services outside an airport's existing primary screening area at up to eight airports.

Section 139—National Flood Insurance Program (NFIP) Extension

Section 139 extends the authorization for the NFIP to continue to operate for the duration of the CR by altering the application of two provisions in the *U.S. Code*.

The first provision is a temporary extension of the NFIP's borrowing authority, and the second is a termination date for the NFIP's authority to issue new policies. Both provisions are necessary to extend normal NFIP operations. The NFIP has \$30.4 billion in borrowing authority that would otherwise expire at the end of FY2026.¹⁵ Section 139(a) extends this level of borrowing authority through the duration of this act, allowing the NFIP to continue to pay claims. Additionally, the NFIP's authority to issue new policies would expire at the end of FY2026.¹⁶ Section 139(a) extends that authority through the duration of the CR as well.

Similar extensions have been enacted since FY2018, and CRs have been used intermittently as vehicles for temporary extensions of NFIP authorities since 1998.¹⁷

¹⁴ All four programs have been extended through provisions in appropriations bills since FY2018, and some of the individual programs have used this mechanism even longer.

¹⁵ 42 U.S.C. §4016(a).

¹⁶ 42 U.S.C. §4026.

¹⁷ For additional information on what expiration of the program might mean, see CRS Insight IN10835, *What Happens If the National Flood Insurance Program (NFIP) Lapses?*, by Diane P. Horn.

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